

From: Charan Martin charan.martin@dataprotection.education
Subject: Re: data breach incident from last month
Date: 23 February 2021 at 13:43
To: Ahmad, Anila Anila.Ahmad@kennellaneschool.com



Hi Anila,

I am in the office tomorrow so when is the best time to call you to catch up on this?

My thoughts are as follows below.

There appears to be two aspects to this.

The first is the complaint to the school which needs dealing with in line with school complaints procedures.

The second is the GDPR request made for erasure of the data of the older child. This request is made by Joint letter (by the parent with PR and the one without.) Mum can exercise the child's data rights if the child is not competent to do so, or the child, if competent, can exercise his own data rights and can ask another person to deal with this for him. This could be anyone of the child's choosing including the step dad if the competent child wants this. Do you know if this child is competent to exercise his own data rights? You will need to consider this and find out. It also appears to me that this can't be addressed directly with the older child until after the police interview, if SS previous view/ advice, that this child has not been informed of the breach, or circumstances of it, as it would alert him to the police interview, still applies to the situation. You will need to consult with the DSL, SS/the older child's social worker and the older child's school. The Social worker who knows this child should have a view upon both the issue of whether he has sufficient understanding to exercise his own data rights and whether SS previous advice still applies to the situation or whether there had been a change. I seem to remember the older child may be an older teenager of 15 or 16 so competence could be likely, unless he has disabilities that impact upon his capacity to understand?

As I remember matters you did not request the data referred to it as it was sent to you by SS. Can you confirm this correct?

Also I remember you stated that the reason you have the data referred to in relation to the older child, is because it is considered relevant to the younger child at your school due to the possibility of impact upon the younger child. Can you confirm this is the reason? Also you are invited to meetings in respect of both children for safeguarding reasons. Can you confirm this is correct? If safeguarding is the reason that you hold this data then it's clear to me that you are sent this data as a consequence of your statutory duty to safeguard the welfare of the younger child and can not delete or erase it for these reasons.

You should log it on the data rights log as a request made by the mother as she has PR and explain this to the mother.

You may need to explain the above points in relation to GDPR to mum as well as apologise assure and explain exactly what systems have now been put into place to prevent further breaches. The mother as the only person with PR must be the point of contact in effect at present in relation to GDPR if safeguarding reasons still prevent the older child (if considered competent) being consulted about his data rights.

Even if the older child is competent it seems that a discussion with him about what he wants to do is not possible right now depending on what SS say (because he's not been interviewed by the police yet) but could take place after the police interview, though it must be said the outcome of a request for erasure would be the same as you can't delete data if you hold it as a consequence of your statutory duty to safeguard.

You should tell mother that Data protection Education is your DPO and that if she wants to discuss this with me I can be contacted using the dpo@dataprotection.education email address. Please do not give her the DPO email address I use to contact you with or my personal phone number.

You should also tell her that the breach was reported with recommendations made to ensure that no further breaches take place and that you have conducted an internal review to ensure data security and prevent further breaches taking place.

You will also need to update me as to how far you have proceeded with securing data and what changes are now in place before I discuss it with mum.

Speak soon

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On 23 Feb 2021, at 09:15, Ahmad, Anila <Anila.Ahmad@kennellaneschool.com> wrote:

Hi Charan

I hope you are well.

The parent of the child relating to the data breach last month has responded with below. Most of this should be fine to respond however, as he has no PR for the child in question do we make clear we can only respond to mum about him?

Kind regards

Anila

From: Craig Baker [mailto:craig7141@hotmail.co.uk]
Sent: 22 February 2021 20:03
To: Ahmad, Anila <Anila.Ahmad@kennellaneschool.com>
Cc: Anna Baker <lovebaileys1@gmail.com>
Subject: Re: URGENT ACTION - Data breach

Hello

On the 29th of January my wife Anna received a confidential attachment with zero security like all the others we have received from kls. This one had information that we shouldn't have received due to the confidentiality of the subject. This information was about Terry Avis-Bailey the brother of Ryan Baker and the disclosure that he made at therapy.

On the bottom of the report it says about keeping it in line with the data protection act 1998. If this is the guidelines you are following no wonder things are going wrong as there has been a new data protection act out since 2018 which I'm sure would be more relevant than the old one

We were not made aware of what had been said for a over a week and suspected the worse whilst waiting for the police to come out a speak to him about this. After several

weeks we are still awaiting a visit by the police in relation to this. We have been advised that we were not to speak to Terry about his disclosure but we were also not allowed to know what was said. The report not only lists this but also mentioned a section 47 investigation which I am sure we should not have been informed of. This could potentially impact or have impacted on a active police investigation.

This was sent without any security and against DfE guidelines. I see this as a massive breach of our data.

Laura our old social worker before we removed the consent of social services due to a catalogue of errors, had to receive permission to share less information than we received from this report.

Laura also informed me before the social work England investigation into her began that we would receive a call from someone in Kennel Lane school before half term, This has not happened which is why I am wanting to make a formal complaint.

The information leaked does not even relate to a child in your care. Which is why I fail to see why you need to request further information and reports about Terry from Cressex lodge.

As you along with social services have been shown you cannot be trusted with our private information can you please securely delete all information not relevant to providing an education to Ryan. we feel it is only right we should request the non service related information is deleted as soon as practicably possible.

Many thanks Craig and Anna Baker
Acting on behalf of Terry Avis-Bailey

On 22 Feb 2021, at 09:26, Ahmad, Anila
<Anila.Ahmad@kennellaneschool.com> wrote:

Dear Mr Baker

Many thanks for your email.

I would be the best person to speak to in relation to any data breach that has taken place on Kennel Lane. I am happy to call you at a convenient time or alternatively you can email me some information about the breach and I can follow this up with you?

If you would prefer a call please let me know the best time to call you.

Kind regards

Anila Ahmad

HR/School Manager

HR/School Manager
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From: Steele, Maureen
Sent: 22 February 2021 08:40
To: Ahmad, Anila <Anila.Ahmad@kennellaneschool.com>
Subject: Fw: URGENT ACTION - Data breach

See below

From: Craig Baker <craig7141@hotmail.co.uk>
Sent: Monday, February 22, 2021 1:18 AM
To: Steele, Maureen <Maureen.Steele@kennellaneschool.com>
Subject: Data breach

Hello

I need to speak to someone in regards to a breach and failings in GDPR/ data protection that was communicated from your organisation. If you could pass me onto the relevant person to make a formal complaint I would be very appreciative.

Many thanks Craig

